

B12 SUBDIVISION

These subdivision provisions supplement the WLEP provisions on minimum lot size. The provisions apply to Torrens Title subdivision, not Strata Title Subdivision.

The WLEP permits subdivision with consent, however applicants should also refer to *State Environmental Planning Policy (Exempt & Complying Development) 2008* which enables some forms of subdivision as exempt or complying development.

Objectives

- (a) To maintain the established character of low density neighbourhoods occupied by dwelling houses, semi-detached dwellings, attached dual occupancies or a mixture of these housing types.
- (b) To ensure that subdivision or amalgamation respects the predominant development pattern of the locality.
- (c) To ensure that subdivision or amalgamation results in allotments that have adequate width and configuration to deliver suitable building design and to maintain the amenity of the neighbouring properties.
- (d) To prevent the fragmentation of land that would prevent the delivery of permitted uses on the lot.
- (e) To ensure that subdivision results in lot sizes that protect natural or cultural features including heritage items, protected ecological communities or species, and retain special features such as trees and views.
- (f) To avoid increasing the community's exposure to coastal hazards by minimising the number of residents living within areas that are at risk from coastal hazards.
- (g) To ensure that subdivision and amalgamation result in lots that can achieve compliance with all other relevant DCP controls.
- (h) To ensure that the creation of new lots does not result in a reduction of pedestrian or vehicular connectivity within the existing street network and provides a safe network.
- (i) To minimise any likely impact of subsequent development on the amenity of neighbouring properties.
- (j) To ensure that street addresses comply with the *NSW Address Policy and User Manual 2021*.

Controls

- (a) Minimum lot sizes are contained in WLEP.
- (b) Where a proposed development involves the creation of a new lot, or number of new lots, capable of accommodating new buildings, the development application should be accompanied by at least a conceptual plan of the new building(s).
- (c) Applications must demonstrate that the following has been considered:
 - (i) Site topography and other natural and physical features;
 - (ii) Existing services and easements, or the need for new easements;
 - (iii) Vehicle access;
 - (iv) Any land dedications required (e.g. road widening);
 - (v) Existing vegetation;
 - (vi) Potential flood affectation and stormwater management requirements;
 - (vii) Existing buildings or structures; and